

DISEC

Combating the proliferation of chemical and biological weapons of mass destruction

-Research Report-



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I. Introduction

The idea of incorporating alternative means of combat in warfare has been a looming concept above all of humanity since its emergence from the dirt it once called home, but after having witnessed the horrors of mechanised and industrial warfare in the 20th century, we have realised chemical and biological weapons have become an existential dilemma.

With recent developments in biotechnology and chemical engineering only the wildest dreams of man can predict what such weapons would be capable of and with the international order growing increasingly unstable, the risk of such weapons being developed under the radar or even being used is higher than it has ever been.

Navigating the intricate mesh of technological advancements that dwell on the impossible and the complexities of modern societies is a delicate task, and in many instances the fate of humanity rests merely on a waltz of words and lies.

II. Definition of key terms

Chemical weapons - Weapons capable of delivering powerful chemical agents that can cause serious damage or even death;

Biological weapons - Biological agents released deliberately within a group of people in order to spread illness and panic and cause disruption on an economic and societal level.

III. Background information

The Industrial Revolution paved the path for an era of prosperity and technological innovation, but also opened the gates for unspeakable horrors. Knowing the danger of fast acting poisons and anticipating the creation of potent chemical agents, Tsar Nicholas II proposed the international community gather at the First Hague Conference in 1899, drafting an early multilateral treaty that set out the boundaries that should not be crossed in war.

One such boundary, set out in article 23, included the prohibition of the use of poison and poison-coated weapons, marking the first ever instance of chemical and biological weapon reglementation.

Following the First World War, after humanity witnessed first hand that man can be cruelly creative in its destruction, it became evident that more strict limitations were required. As

such, the Geneva Protocol of 1925 was born, building upon the foundation formed by the Hague Conferences of 1899 and 1907. This document extended the prohibitions and placed bacteriological means of warfare off limits for all signatory parties.

Discussions regarding feasibility of prohibition and non-proliferation principles have been endless ever since the establishment of the United Nations in 1945. The question of enforcement and efficiency of observatory bodies remains largely ambiguous, but the General Assembly has been hard at work reinforcing the authority of the Protocol and its subsequent treaties.

All efforts in this direction have culminated in the wake of the 21st century, with the signing and ratification of the *Chemical Weapons Convention* (1993) and the *Biological Weapons Convention* (1972)¹. These documents are the ultimate reinforcement of the United Nations' commitment to disarmament and to the eradication of chemical and biological weapons as a whole.

To this day, the conventions are reviewed periodically, progress of their implementation is being monitored by the Secretary General and their texts stand as pillars of international law and disarmament efforts.

IV. Key issues

Enforcement

The lack of proper enforcement of international law, a long standing issue regarding the international theatre, makes its presence felt in this direction also. As the United Nations was founded as a governing body superseding the authority of a nation, one of its core principles was the sacred nature of national sovereignty, and all organisations that are bound by the UN ensign must respect it also. These limitations can be a hindrance to the efficient work of bodies designated to monitor different situations and their mandates forbid direct involvement. As such, there can never be a true guarantee of compliance and enforcement authority is heavily limited, which brings us neatly to the second issue.

Trust

Trust is mighty like a forest, and equally as arduous to build, but it burns quicker than the most feeble of matchsticks. As international relations and general stability are heavily reliant on a factor of trust, years of cooperation and hard work can be gone in the blink of an eye, and the world dances on the edge of a knife. With the significant changes in influential regimes around the world, the ongoing wars and the rapidly shifting policies, the international community has

¹ Colloquial denominators

grown colder and nations more distrustful of one another. The significant and continuous increase in tensions could lead to some nations building the capacity to manufacture biological or chemical weapons in breach of international law, if it proves to be strategically viable.

Difficulties in enforcing international law on private enterprise

A fundamental issue with international law, most commonly invoked when the discourse revolves around private military contractors and other companies of sorts, is becoming increasingly apparent in other areas of civilian society as well. In recent years humanity has witnessed the true scale of influence that companies possess in some areas, and enforcing international law on non-national entities has always been ambiguous at best. The impossibility of legal countermeasures against a private enterprise developing a chemical or biological weapon is something that needs to be taken into account moving forward.

Security Council Consensus

As threats to international peace are the expertise of the Security Council, everything pertaining to breaches of international law must be reported to it or a subsidiary organ of the SC. As the United Nations Charter provides the five founding nations with the power to oppose (veto), the Security Council is incredibly slow to elaborate effective legislation and usually either emits a resolution that lacks the necessary rigour because of compromise with the five nations or doesn't have anything at all because consensus is a distant dream when every nation is after personal gain and protecting national interests.

V. Relevant treaties

1. **The Chemical Weapons Convention** - Opened for signature in 1993 and entered into force in 1997, the CWC is the main legislative body establishing a standard of categorization regarding chemical weapons and a strict prohibition on everything that falls under said category. A review committee was established to meet once every five years since the convention was signed, their latest meeting having taken place in 2023, placing great emphasis on the relevance of the convention in front of new technological advancements.
2. **The Biological Weapons Convention** - Opened for signature in 1972 and entered into force in 1975, the BWC aims to strengthen the 1925 Geneva Protocol by establishing a firm ban on every weapon utilizing bacteriological pathogens or otherwise biological means of damaging parts of society. Like with the CWC, a review committee has been meeting once every five years since the convention's entry into force. During their latest meeting in 2022, the committee discussed the benefits of establishing an ad-hoc Working

Group that would explore the implementation of stricter measures and the path of making certain clauses in the convention universally legally binding.

VI. Major parties involved

1. **The Organization for the Prohibition of Chemical Weapons (OPCW)** - Established in the Convention on Chemical Weapons (CWC) and mandated to monitor the progress of and promote the implementation of said convention. In 2001, the UNGA adopted a resolution strengthening the cooperative ties between the two institutions and in 2007 the OPCW reported that all of the chemical weapons of parties that ratified the convention had been destroyed. Together, the two institutions successfully led an investigation against the Syrian Arab Republic regarding the use of chemical weapons after its accession to the convention. Although eventually reports regarding perpetrators were issued, the investigations were hindered by the Security Council's inability to reach a consensus for a mandate extension.
2. **The United Nations Office for Disarmament Affairs** - The parent institution of the **Implementation Support Unit**, which oversees the implementation of the Biological Weapons Convention (BWC) and accepts voluntary contributions by all member states. Efforts at disarmament have been strengthened at the Ninth Review Conference in 2022 when a Working Group was also established to seek measures of strengthening the word of the Convention, possibly through legally binding initiatives.
3. **Syria** - Since its accession to the convention in 2013, it has posed a significant challenge for the OPCW, having been repeatedly accused of harboring and even using CWs, so far as having the Security Council step in and write resolution 2118 (2013), creating a Joint Mission and mandating it to destroy all chemical weapons in the country. While the mission ended in 2014, the OPCW still has to work toward fully implementing the Security Council decision.
4. **North Korea** - A well known opponent of a number of international treaties, justifying its reluctance to sign them with its limited capacity of defending itself against the "Western oppressors". It has not signed the Chemical Weapons Convention and continues to keep a stockpile of CWs and while it is a signatory of the BWC it continues to have an active biological weapons program, contributing to distrust and tensions in the geographical region.
5. **Russian Federation** - While it has declared the full destruction of both CWs and BWs following the dissolution of the Soviet Union, there has long been speculation that the removal of residues coming from Soviet programs was not fully carried out. In the current war of aggression that Russia is leading into Ukraine, there is significant evidence of Russia using irritant agents delivered via drones in the Ukrainian theatre of war. While sanctions have been imposed on Russian entities following the discovery of banned

chemicals, the issue of international law enforcement makes itself even more apparent and experts are concerned this may have set a precedent for the development of more lethal chemicals to be used in war.

6. **Iran** - A perfect example of the importance of trust in the international community is the case of the Islamic Republic of Iran. In recent times, the United States and Israeli intelligence reports have signaled the possibility of Iran rebuilding its chemical weapons capabilities and have used these allegations to justify some preemptive strikes within the territory of the Islamic Republic. While Iran has used chemical weapons in order to crackdown the protests in recent years, the development of military grade chemicals and industrial scale chemical weapons is still a serious allegation that needs addressing.

VII. Short timeline

Year	Event
1899	The First Hague Conference, setting a precedent for laws and guidelines that must not be crossed in war, including the use of poisons
1914 - 1918	Almost every party that takes part in World War 1 violates the clauses in the Hague Conference, using mustard gas and other means of warfare without regard for suffering

1925	Public outrage determines the international community to draft a stronger binding document that would dictate behaviour in war, with a more pronounced accent on banning chemical and biological agents as weapons
1975	The Biological Weapons Convention is written and open for signature by all state entities, marking the beginning of disarmament and the eradication of Biological Weapons entirely, overviewed by the UNODA
1993	The Chemical Weapons Convention is written and the Organisation for the Prohibition of Chemical Weapons is established to monitor the complete implementation of the CWC
2001	The UNGA and the OPCW form stronger ties and begin cooperating in investigating breaches of the convention and enforcing its text
2013	The OPCW and the UNSC establish the Joint Mission to investigate the use of CWs in Syria and eradicate any remaining stockpiles

2014	The Joint Mission is dissolved
2015 - 2016	The UNSC mandates a Joint Investigative Mission, whose purpose is to investigate individuals suspected to be tied to the Chemical Weapons
2023	OPCW declares it has managed to eradicate the entire stockpile of Chemical Weapons held by states signatory to the CWC, but there is skepticism regarding some of the nations
2023 - today	It has been confirmed Russia is using chemical weapons in the Ukrainian theatre of war

VIII. Possible solutions

1. Trust building in the international community should be a priority for the United Nations, as so much of the system relies on the benevolent cooperation of states and the mutual trust that the word of law is upheld;

2. Strengthening the already existing conventions and extending them to fit the contemporary circumstances;
3. Finding solutions to the difficulty of holding judicial entities responsible in front of international law;
4. Finding better solutions to the problem of enforcing the conventions through legally binding measures, more strict sanctions and a more robust system of establishing thorough investigations of potential breaches.

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